

2:00PM LINE 6

24-CLJ-00707

WELLS FARGO BANK, N.A. VS. DAVID GONZALEZ

WELLS FARGO BANK, N.A.
DAVID GONZALEZ

HARLAN M. REESE
CODY R. LEJEUNE

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is **GRANTED** pursuant to Code of Civil Procedure, section 438, subdivision (c)(1)(A).

As a preliminary matter, plaintiff has provided an incorrect address for the hearing. Department 28 is not located in Redwood City as the notice states, but instead at the Central Courthouse, Courtroom I, 800 North Humboldt St., San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff's Request for Judicial Notice is **GRANTED**. (Evid. Code, § 452 subd. (d).)

A motion for judgment on the pleadings is to be granted under essentially the same standard as that applied in the case of a general demurrer; that is, whether under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Shea Homes Ltd. Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254.) The court is generally confined to the facts alleged in the challenged pleading, and facts which are subject to judicial notice, and extrinsic evidence is not to be considered. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516; *Sykora v. State Dep't of State Hosps.* (2014) 225 Cal.App.4th 1530, 1534.) Where a defendant's answer raises any material issue or sets up any affirmative matter constituting a defense, a motion for judgment on the pleadings should be denied. (*Allstate Ins. Co. v Kim W.* (1984) 160 Cal.App.3d 326, 330-331.)

Here, plaintiff's judicial council form complaint alleges each element of causes of action for breach of contract and common counts relating to defendant David Gonzalez's credit card agreement. The genuineness of any documents and the truth of any matters specified in plaintiff's requests for admission, set one, were deemed admitted pursuant to the court's April 8, 2026 order re plaintiff's motion to deem facts admitted. (RJN, exh. C.) Those requests for admissions included admissions that: (1) defendant had an account with plaintiff ending in 6259; (2) the monthly account statements were sent to defendant requesting minimum payments; (3) defendant never notified plaintiff of a dispute; (4) as of February 8, 2024 there was a balance owing of at least \$5,083.40 on the account; (5) defendant has not paid any amount on the account since that date; (6) defendant owes at least \$5,083.40 on the account; (7) the consumer credit card customer agreement and disclosure statement applicable to the account contains a provision entitled plaintiff to attorney's fees; (8) defendant does not have

“credit defense” (e.g., any debt cancellation agreement), and/or that defendant does not qualify for its benefits; (9) and that the affirmative defenses asserted lack merit and evidentiary support. (RJN, exh. B.)

In light of these admissions, plaintiff has established the elements of a cause of action for breach of contract and common counts, and defendant’s Answer does not support any defense.

The Motion is accordingly **GRANTED** and Judgment is to be immediately entered against defendant David Gonzalez in the amount of \$5,083.40 less \$571.40 in principal. Plaintiff has filed a memorandum of costs which also seeks attorney’s fees in the amount of \$800 per the court’s schedule. If defendant does not timely move to tax or strike, plaintiff may move to amend the judgment to include fees and costs.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 7

25-CIV-04767

JIAQI WU VS. GENERAL MOTORS, LLC.

JIAQI WU
GENERAL MOTORS, LLC.

JAMES LAWRENCE CARROLL
KRISTEN ALLISON

Defendant's Motion for Compliance Pursuant to C.C.P 871.26; and Request for Sanctions

TENTATIVE RULING:

For the reasons stated below, defendant General Motors, LLC's "Motion for Compliance Pursuant to C.C.P. § 871.26, and Request for Sanctions," filed on May 29, 2026, is **GRANTED in part** and **DENIED in part**.

GM's motion to compel plaintiff to appear for deposition within ten (10) days of the September 16, 2026 hearing date is **GRANTED**. (Code Civ. Proc., § 871.26, subd. (c).)

Plaintiff does not dispute that Section 871.26 applies to this case. The statute requires that plaintiff appear for an initial deposition within 120 days after defendant's responsive pleading. (Code Civ. Proc., § 871.26, subd. (c).) GM filed its demurrer (that is, the initial responsive pleading) in early October 2025. Thus, plaintiff's deposition should have taken place by February 2026 (nearly six months ago). Plaintiff argues that this motion to compel the deposition is moot, because after GM filed this motion, plaintiff agreed to appear for deposition on September 9, 2026, and thus, plaintiff argues that the deposition will be completed by the time of the September 16, 2026 hearing. The court has no way to know whether the September 9 deposition will actually go forward (or has happened). Neither party has updated the court on this issue. Plaintiff previously agreed to prior deposition dates, only to later cancel them. This order compelling the deposition will be rendered moot, of course, if, by the time of the September 16, 2026 hearing, plaintiff's Section 871.26 deposition has already occurred.

Defendant's request for monetary sanctions against plaintiff's counsel is **DENIED**. Code of Civil Procedure, section 871.26, subdivision (c) mandates an award of monetary sanctions "[u]nless the party failing to comply with this section shows good cause." Here, after GM agreed to a February 21, 2026 date for plaintiff's deposition, it appears that plaintiff, plaintiff's counsel, and a Cantonese interpreter were *ready to proceed on that date*, but GM chose to cancel the deposition and to re-schedule it, because plaintiff had provided their own interpreter, and GM preferred to use its own interpreter. Thus, GM chose to re-schedule the deposition. This fact makes it difficult for GM to argue that plaintiff has evaded the deposition.

Further, although plaintiff later agreed to a March 25, 2026 deposition date, only to send a letter on March 11, 2026 stating that plaintiff was no longer available on March 25, 2026 (Stark Decl., ¶ 13), since that time there is no evidence that GM has tried to re-schedule the deposition. The Stark declaration states that since March 11, 2026, "Plaintiff has not attempted to reschedule the deposition." (*Id.*, ¶ 15.) But the same could be said of GM. GM filed this motion on May 29,